the revised title. In clauses (10) and (11), the words ''the Northern Mariana Islands'' are added because of section 502(a)(2) of the Covenant to Establish a Commonwealth of the Northern Mariana Islands in Political Union with the United States of America, as enacted by the Act of March 24, 1976 (Public Law 94–241, 90 Stat. 268), and as proclaimed to be in effect by the President on January 9, 1978 (Proc. No. 4534, Oct. 24, 1977, 42 F.R. 56593). The words ''the Canal Zone'' are omitted because of the Panama Canal Treaty of 1977. In clause (10), the word ''means'' is substituted for ''includes'' as being more appropriate. The words ''a State of the United States'' are substituted for ''each of the several States'' for consistency. The words ''the Commonwealth of'' are omitted as surplus. In clause (11), the word ''Federal'' is omitted as surplus. The words ''of the Commonwealth of Puerto Rico'' are omitted as unnecessary because the district court of Puerto Rico is a district court of the United States under 28:119.

In subsection (b)(1), before clause (A), the words ''The term'' and ''the term'' are omitted as surplus. In clause (B), the words ''of a motor vehicle or motor vehicle equipment'' are added for clarity. In clause (E), the words ''to be'' are added for consistency. The words ''marketed under such brand name'' are omitted as surplus. In clause (F), the words ''a motor vehicle safety standard prescribed under this chapter'' are added for clarity and consistency. The word ''noncompliance'' is substituted for ''failure to comply'' for consistency in the chapter. In clause (G), the words ''(rather than the manufacturer of such equipment)'' are omitted as surplus. The words ''deemed to be'' are substituted for ''considered'' for consistency. In clause (H), the words ''which have been'' are omitted as surplus.

Subsection (b)(2) is substituted for ''Except as otherwise provided in regulations of the Secretary'' for clarity and because of the restatement.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in title 15 section 2052.

§ 30103. Relationship to other laws

(a) UNIFORMITY OF REGULATIONS.—The Secretary of Transportation may not prescribe a safety regulation related to a motor vehicle subject to subchapter II of chapter 105 of this title that differs from a motor vehicle safety standard prescribed under this chapter. However, the Secretary may prescribe, for a motor vehicle operated by a carrier subject to subchapter II of chapter 105, a safety regulation that imposes a higher standard of performance after manufacture than that required by an applicable standard in effect at the time of manufacture.

(b) PREEMPTION.—(1) When a motor vehicle safety standard is in effect under this chapter, a State or a political subdivision of a State may prescribe or continue in effect a standard applicable to the same aspect of performance of a motor vehicle or motor vehicle equipment only if the standard is identical to the standard prescribed under this chapter. However, the United States Government, a State, or a political subdivision of a State may prescribe a standard for a motor vehicle or motor vehicle equipment obtained for its own use that imposes a higher performance requirement than that required by the otherwise applicable standard under this chapter.

(2) A State may enforce a standard that is identical to a standard prescribed under this chapter.

(c) ANTITRUST LAWS.—This chapter does not—

(1) exempt from the antitrust laws conduct that is unlawful under those laws; or

(2) prohibit under the antitrust laws conduct that is lawful under those laws.

(d) WARRANTY OBLIGATIONS AND ADDITIONAL LEGAL RIGHTS AND REMEDIES.—Sections 30117(b), 30118–30121, 30166(f), and 30167(a) and (b) of this title do not establish or affect a warranty obligation under a law of the United States or a State. A remedy under those sections and sections 30161 and 30162 of this title is in addition to other rights and remedies under other laws of the United States or a State.

(e) COMMON LAW LIABILITY.—Compliance with a motor vehicle safety standard prescribed under this chapter does not exempt a person from liability at common law.

(Pub. L. 103–272, § 1(e), July 5, 1994, 108 Stat. 943.)

HISTORICAL AND REVISION NOTES

Revised Section	*Source (U.S. Code)*	*Source (Statutes at Large)*
30103(a)	15:1392(g).	Sept. 9, 1966, Pub. L. 89–563, §§ 103(g), 105(a)(6), 116, 80 Stat. 720, 721, 727.
30103(b)	15:1392(d).	Sept. 9, 1966, Pub. L. 89–563, § 103(d), 80 Stat. 719; Oct. 15, 1982, Pub. L. 97–331, § 3, 96 Stat. 1619.
30103(c)	15:1405.	
30103(d)	15:1394(a)(6).	
	15:1410a(e).	Sept. 9, 1966, Pub. L. 89–563, 80 Stat. 718, §§ 124(e), 160; added Oct. 27, 1974, Pub. L. 93–492, §§ 102(a), 106, 88 Stat. 1477, 1481.
	15:1420.	
30103(e)	15:1397(k).	Sept. 9, 1966, Pub. L. 89–563, § 108(k), 80 Stat. 723; Oct. 31, 1988, Pub. L. 100–562, § 2(b), 102 Stat. 2818.

In subsection (a), the words ''or the Transportation of Explosives Act, as amended (18 U.S.C. 831–835)'' are omitted as obsolete because 18:831–835 have been repealed. The word ''prescribe'' is substituted for ''adopt'' for consistency. The words ''or continue in effect'' and ''In prescribing safety regulations'' are omitted as surplus. The word ''prescribed'' is substituted for ''issued'' for consistency. The words ''to comply'' and ''Federal'' are omitted as surplus. The words ''in effect'' are added for clarity.

In subsection (b)(1), the word ''Federal'' is omitted as surplus. The word ''prescribe'' is substituted for ''either to establish, or to continue in effect'' for consistency and to eliminate unnecessary words. The words ''standard prescribed under this chapter'' are substituted for ''Federal standard'' for clarity. The words ''However, the United States . . . may prescribe'' are substituted for ''Nothing in this section shall be construed to prevent the Federal . . . from establishing'' for consistency. The words ''of a State'' are substituted for ''thereof'' for clarity. The word ''standard'' is substituted for ''safety requirement'' for consistency. The words ''performance requirement'' are substituted for ''standard of performance'' to avoid using ''standard'' in 2 different ways.

Subsection (b)(2) is substituted for 15:1392(d) (2d sentence) for consistency and to eliminate unnecessary words.

In subsection (c), the words ''be deemed to'' and ''of the United States'' are omitted as surplus.

In subsection (d), the words ''United States'' are substituted for ''Federal'' in 15:1420 for consistency. The words ''Consumer'' in 15:1420, ''not in lieu of'' in 15:1410a(e) and 1420, and ''not in substitution for'' in 15:1394(a)(6) are omitted as surplus. The word ''other'' is added for clarity.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 31136 of this title.

§ 30104. Authorization of appropriations

The following amounts may be appropriated to the Secretary of Transportation for the National Highway Traffic Safety Administration to carry out this chapter:

(1) $71,333,436 for the fiscal year ending September 30, 1993.

(2) $74,044,106 for the fiscal year ending September 30, 1994.

(3) $76,857,782 for the fiscal year ending September 30, 1995.

(Pub. L. 103–272, § 1(e), July 5, 1994, 108 Stat. 944.)

HISTORICAL AND REVISION NOTES

Revised Section	*Source (U.S. Code)*	*Source (Statutes at Large)*
30104	15:1392 (note).	Dec. 18, 1991, Pub. L. 102–240, § 2501(a), 105 Stat. 2081.

In this section, before clause (1), the words ''to the Secretary of Transportation for the National Highway Traffic Safety Administration'' are substituted for ''For the National Highway Traffic Safety Administration'' for clarity and consistency in the revised title and with other titles of the United States Code. The reference to fiscal year 1992 is omitted as obsolete.

SUBCHAPTER II—STANDARDS AND COMPLIANCE

§ 30111. Standards

(a) GENERAL REQUIREMENTS.—The Secretary of Transportation shall prescribe motor vehicle safety standards. Each standard shall be practicable, meet the need for motor vehicle safety, and be stated in objective terms.

(b) CONSIDERATIONS AND CONSULTATION.—When prescribing a motor vehicle safety standard under this chapter, the Secretary shall—

(1) consider relevant available motor vehicle safety information;

(2) consult with the agency established under the Act of August 20, 1958 (Public Law 85–684, 72 Stat. 635), and other appropriate State or interstate authorities (including legislative committees);

(3) consider whether a proposed standard is reasonable, practicable, and appropriate for the particular type of motor vehicle or motor vehicle equipment for which it is prescribed; and

(4) consider the extent to which the standard will carry out section 30101 of this title.

(c) COOPERATION.—The Secretary may advise, assist, and cooperate with departments, agencies, and instrumentalities of the United States Government, States, and other public and private agencies in developing motor vehicle safety standards.

(d) EFFECTIVE DATES OF STANDARDS.—The Secretary shall specify the effective date of a motor vehicle safety standard prescribed under this chapter in the order prescribing the standard. A standard may not become effective before the 180th day after the standard is prescribed or later than one year after it is prescribed. However, the Secretary may prescribe a different effective date after finding, for good cause shown, that a different effective date is in the public interest and publishing the reasons for the finding.

(e) 5-YEAR PLAN FOR TESTING STANDARDS.—The Secretary shall establish and periodically review and update on a continuing basis a 5-year plan for testing motor vehicle safety standards prescribed under this chapter that the Secretary considers capable of being tested. In developing the plan and establishing testing priorities, the Secretary shall consider factors the Secretary considers appropriate, consistent with section 30101 of this title and the Secretary's other duties and powers under this chapter. The Secretary may change at any time those priorities to address matters the Secretary considers of greater priority. The initial plan may be the 5-year plan for compliance testing in effect on December 18, 1991.

(Pub. L. 103–272, § 1(e), July 5, 1994, 108 Stat. 944.)

HISTORICAL AND REVISION NOTES

Revised Section	*Source (U.S. Code)*	*Source (Statutes at Large)*
30111(a)	15:1392(a), (b), (e) (1st sentence).	Sept. 9, 1966, Pub. L. 89–563, §§ 102(13), 103(a)–(c), (e), (f), 107 (related to standards), 80 Stat. 719, 721.
30111(b)	15:1391(13). 15:1392(f).	
30111(c)	15:1396 (related to standards).	
30111(d)	15:1392(c), (e) (last sentence).	
30111(e)	15:1392(j).	Sept. 9, 1966, Pub. L. 89–563, 80 Stat. 718, § 103(j); added Dec. 18, 1991, Pub. L. 102–240, § 2505, 105 Stat. 2084.

In subsection (a), the words ''shall prescribe'' are substituted for ''shall establish by order'' in 15:1392(a) and ''may by order'' in 15:1392(e) (1st sentence) for consistency. The words ''amend or revoke'' in 15:1392(e) (1st sentence) and 1397(b)(1) (last sentence) are omitted because they are included in ''prescribe''. The words ''appropriate Federal'' in 15:1392(a) and ''Federal'' in 15:1392(e) (1st sentence) are omitted as surplus. The words ''established under this section'' are omitted because of the restatement. The text of 15:1392(b) is omitted as surplus because 5:chs. 5, subch. II, and 7 apply unless otherwise stated.

In subsection (b)(1), the words ''including the results of research, development, testing and evaluation activities conducted pursuant to this chapter'' are omitted as surplus.

In subsection (b)(2), the words ''agency established under the Act of August 20, 1958 (Public Law 85–684, 72 Stat. 635)'' are substituted for 15:1391(13) and ''the Vehicle Equipment Safety Commission'' in 15:1392(f) because of the restatement. The citation in parenthesis is included only for information purposes.

In subsection (b)(4), the words ''contribute to'' are omitted as surplus.

In subsection (c), the words ''departments, agencies, and instrumentalities of the United States Government, States, and other public and private agencies'' are substituted for ''other Federal departments and agencies, and State and other interested public and private agencies'' for consistency. The words ''planning and'' are omitted as surplus.

In subsection (d), the words ''The Secretary'' are added for clarity. The words ''effective date'' are substituted for ''the date . . . is to take effect'' to eliminate unnecessary words. The words ''under this chapter'' are added for clarity. The words ''However, the Secretary may prescribe a different effective date'' are substituted for ''unless the Secretary'' for clarity. The word ''different'' is substituted for ''earlier or later'' to eliminate unnecessary words.

In subsection (e), the words ''duties and powers'' are substituted for ''responsibilities'', and the word ''change'' is substituted for ''adjust'', and for clarity and consistency in the revised title.